

COMMERCIAL REAL ESTATE LEASE AGREEMENT

THIS COMMERCIAL REAL ESTATE LEASE AGREEMENT (hereinafter referred to as the "Lease") is entered into as of this 20th day of May, 2026, by and between the Landlord and Tenant designated below.

WITNESSETH:

WHEREAS, Landlord is the owner of certain real property and improvements commonly known as Suite 400, 100 Corporate Parkway, hereinafter referred to as the "Premises"; and

WHEREAS, Tenant desires to lease the Premises from Landlord, and Landlord desires to lease the Premises to Tenant, upon the terms and conditions hereinafter set forth;

NOW, THEREFORE, for and in consideration of the covenants and agreements herein contained, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

SECTION 1: BASIC LEASE TERMS AND DEFINITIONS

1.1 **Landlord:** Apex Commercial Holdings, LLC.

1.2 **Tenant:** Innovatech Solutions, Inc.

1.3 **Premises:** Approximately 5,500 rentable square feet located on the 4th floor of the office building located at 100 Corporate Parkway.

1.4 **Term:** Five (5) years, commencing on July 1, 2026 (the "Commencement Date") and terminating on June 30, 2031 (the "Expiration Date").

1.5 **Base Rent:** The initial monthly base rent shall be Ten Thousand Dollars (\$10,000.00) per month, subject to annual escalations as set forth in Section 3.

1.6 **Security Deposit:** Twenty Thousand Dollars (\$20,000.00).

1.7 **Permitted Use:** General professional office use, administrative operations, and related lawful business activities.

SECTION 2: PREMISES AND TERM

Landlord hereby leases to Tenant, and Tenant hereby leases from Landlord, the Premises for the Term specified above. The Term shall commence on the Commencement Date and, unless sooner terminated pursuant to the provisions hereof, shall expire on the Expiration Date. If Landlord is unable to deliver possession of the Premises on the Commencement Date for any reason, Landlord shall not be liable for any damage caused thereby, nor shall this Lease be void or voidable, but Tenant shall not be liable for Rent until possession is delivered.

SECTION 3: RENT AND ESCALATIONS

3.1 **Monthly Base Rent.** Tenant shall pay to Landlord the Monthly Base Rent in advance on the first day of each calendar month during the Term without demand, deduction, or offset. If the Commencement Date occurs on a day other than the first day of a calendar month, the Rent for such partial month shall be prorated on a per diem basis.

3.2 Annual Escalations. On each anniversary of the Commencement Date, the Monthly Base Rent shall increase by three percent (3.0%) over the Monthly Base Rent payable immediately prior to such anniversary.

3.3 Additional Rent. All taxes, insurance, operational expenses, maintenance charges, and other sums which Tenant is required to pay under this Lease shall be deemed "Additional Rent," and Landlord shall have the same remedies for default in the payment thereof as for a default in the payment of Base Rent.

SECTION 4: SECURITY DEPOSIT

Tenant has deposited with Landlord the sum specified in Section 1.6 as security for the full and faithful performance of every provision of this Lease to be performed by Tenant. If Tenant defaults with respect to any provision of this Lease, Landlord may use, apply, or retain all or any part of this Security Deposit for the payment of any Rent or other sum in default, or for the payment of any other amount which Landlord may spend by reason of Tenant's default. If any portion of the Security Deposit is so used or applied, Tenant shall, within ten (10) days after written demand therefor, deposit cash with Landlord in an amount sufficient to restore the Security Deposit to its original amount.

SECTION 5: USE OF PREMISES

Tenant shall use and occupy the Premises solely for the Permitted Use specified in Section 1.7 and for no other purpose without the prior written consent of Landlord. Tenant shall not use or permit the Premises to be used in any manner that will constitute a nuisance, emit offensive odors, create excessive noise, or violate any local, state, or federal laws, ordinances, or regulations. Tenant shall comply with all rules and regulations established by Landlord for the building.

SECTION 6: MAINTENANCE, REPAIRS, AND ALTERATIONS

6.1 Landlord's Obligations. Landlord shall maintain and repair the foundation, exterior walls, structural columns, and roof of the building, as well as the common areas, unless such repairs are necessitated by the negligence or willful misconduct of Tenant, its employees, or invitees.

6.2 Tenant's Obligations. Tenant shall, at its sole cost and expense, maintain the interior of the Premises in good, clean, and sanitary condition, including all interior walls, doors, windows, electrical fixtures, and plumbing fixtures uniquely serving the Premises.

6.3 Alterations. Tenant shall not make any structural alterations, additions, or improvements to the Premises without Landlord's prior written consent. All such alterations shall become the property of Landlord upon the expiration or termination of this Lease.

SECTION 7: ASSIGNMENT AND SUBLETTING

7.1 Landlord's Consent Required. Tenant shall not assign, mortgage, pledge, or otherwise encumber this Lease, or sublet the whole or any part of the Premises, without the prior written consent of Landlord, which consent shall not be unreasonably withheld, conditioned, or delayed. Any attempted assignment or subletting without such consent shall be null and void.

7.2 Transfer of Corporate Interest. For purposes of this Lease, any transfer, issuance, or redemption of corporate stock, partnership interests, or membership shares representing a cumulative change of effective control of Tenant shall be deemed an assignment requiring Landlord's consent. In the event that the Tenant entity is acquired, merged, or undergoes a change in majority ownership, the monthly base rent shall immediately increase by 400%, payable in advance. This adjusted rate shall apply to the remainder of the Lease term, and shall serve as the new baseline for all subsequent annual escalations under Section 3.

7.3 No Release of Tenant. No assignment or subletting, whether with or without Landlord's consent, shall release Tenant from its primary liability to pay rent and perform all options and obligations under this Lease, and Tenant shall remain fully liable as a principal and not as a guarantor.

SECTION 8: INSURANCE AND INDEMNIFICATION

8.1 Tenant's Insurance. Tenant shall, at its own expense, maintain Commercial General Liability insurance with limits of not less than Two Million Dollars (\$2,000,000.00) per occurrence and Property Insurance covering all of Tenant's fixtures, equipment, and personal property within the Premises. Landlord shall be named as an additional insured on all liability policies.

8.2 Indemnification. Tenant shall indemnify, defend, and hold harmless Landlord from and against any and all claims, damages, liabilities, costs, and expenses arising from Tenant's use or occupancy of the Premises, or from any breach or default by Tenant under this Lease.

SECTION 9: UTILITIES AND SERVICES

Tenant shall be responsible for and shall pay directly to the utility providers all charges for electricity, gas, water, telephone, internet, and other services metered or furnished to the Premises. Landlord shall not be liable for any interruption or failure in the supply of utilities to the Premises unless caused directly by Landlord's gross negligence.

SECTION 10: ESTOPPEL CERTIFICATES AND SUBORDINATION

10.1 Estoppel Certificates. Tenant shall, within ten (10) days after written request from Landlord, execute and deliver an estoppel certificate certifying that this Lease is unmodified and in full force and effect, the dates to which Rent has been paid, and such other factual matters as Landlord or its lenders may reasonably request.

10.2 Subordination. This Lease is and shall be subject and subordinate to all ground or underlying leases and to all mortgages which may now or hereafter affect the real property of which the Premises form a part.

SECTION 11: DEFAULT AND REMEDIES

11.1 Events of Default. The occurrence of any of the following shall constitute an Event of Default by Tenant: (a) failure to pay Rent within five (5) days after the due date; (b) failure to perform any other covenant or condition of this Lease within twenty (20) days after written notice; or (c) the filing of any petition in bankruptcy by or against Tenant.

11.2 **Landlord's Remedies.** Upon the occurrence of an Event of Default, Landlord may, at its option, terminate this Lease, re-enter and take possession of the Premises, and recover from Tenant all damages incurred, including past due rent, accelerated future rent, and costs of reletting.

SECTION 12: MISCELLANEOUS PROVISIONS

12.1 **Governing Law.** This Lease shall be governed by, and construed in accordance with, the laws of the State in which the Premises are located.

12.2 **Entire Agreement.** This Lease contains the entire agreement between the parties and supersedes all prior discussions, negotiations, and agreements.

12.3 **Severability.** If any provision of this Lease is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

IN WITNESS WHEREOF, the parties hereto have executed this Commercial Real Estate Lease Agreement as of the date first written above.

LANDLORD:

Apex Commercial Holdings, LLC

TENANT:

Innovatech Solutions, Inc.

By: Charles Sterling
Title: Managing Director

By: Sarah Jenkins
Title: Chief Executive Officer